

Enlarged Board held that for the petition to be admissible, it was however sufficient if only one ground was sufficiently reasoned in the request, just as it is for an appeal or opposition (see also G 9/91, OJ 1993, 408).

3.7.2 Non-compliance with Rule 107 EPC and failure to remedy a deficiency

In R 6/10 the board held that if a petition did not comply with R. 107(2) EPC, it must be rejected as inadmissible.

Under R. 108(2) EPC, if the Enlarged Board of Appeal notes that the petition does not comply with R. 107(1)(a) EPC, it shall invite the petitioner to remedy the deficiencies noted within a period to be specified. If the deficiencies are not remedied in due time, the Enlarged Board of Appeal shall reject the petition as inadmissible. In R 6/09 the Enlarged Board noted that such rejection was subject to the petitioner's request for re-establishment of rights.

3.8. Time limit for filing a petition for review

In accordance with Art. 112a(4) EPC, a petition for review shall be filed within two months of notification of the decision of the Board of Appeal (or within two months of the date on which the criminal act has been established where applicable).

In R 3/14 the Enlarged Board held that it was essential to observe the two-month time limit expressly prescribed in Art. 112a(4), second sentence, EPC for filing the reasons for the petition and the supporting submissions; no exceptions could be made.

In R 5/14 the Enlarged Board stated that filing a petition and paying the fee before the orally announced decision has been notified to the petitioner in writing did not make it inadmissible under Art. 112a(4) EPC (see also R 20/10).

In R 2/10 the Enlarged Board held that the established jurisprudence of the boards of appeal that mere payment of the appeal fee was not an act which sufficed for the admissible filing of an appeal applied *mutatis mutandis* to petition for review proceedings.

In R 1/18 the Enlarged Board saw no reason not to apply the findings reached in opinion G 1/18 (OJ 2020, A26) to the provisions governing the legal effects of late payment of the fee for petition for review and so concluded that the petition for review had to be deemed not filed and that the associated fee had to be reimbursed. The Enlarged Board further concluded that the proper legal effect of late payment of the fee for requesting **re-establishment of rights** was a finding that the request was deemed not to have been filed and that the fee was to be reimbursed (see also T 46/07 in chapter III.E.9. "Reimbursement of the fee for re-establishment").

3.9. Article 12(1) RPEBA – late-filed submissions in the review procedure

Pursuant to Art. 12(1) RPEBA the Enlarged Board may consider new submissions made by the petitioner after expiry of the time limit for filing the petition for review, if this is justified

for special reasons. In R.12/10, R.4/13 and R.8/16 no such reasons were advanced by the petitioner, and the Enlarged Board rejected the late-filed submissions. In R.15/13 the Enlarged Board stated that "special reasons" could not extend to the late introduction of grounds not relied on unless or until the grounds in the petition proved insufficient. In R.4/12 and in R.16/12 the Enlarged Board said that an entirely new complaint submitted for the first time during the oral proceedings before the Enlarged Board had no bearing whatsoever on the findings as to the petition's admissibility and merits reached on the basis of the grounds, facts, arguments and evidence set out in the petition.

In R.2/08 the Enlarged Board accepted the petitioner's additional explanations in response to its communication, and in R.18/09 a late-filed external legal opinion on the admissibility of the petition.

3.10. Rule 109 EPC – composition of the Enlarged Board and review procedure

Unless otherwise provided, the provisions relating to proceedings before the boards of appeal apply (R.109(1)EPC). The RPEBA also apply in proceedings under Art.112a EPC (Art.1 RPEBA).

3.10.1 Composition of the Enlarged Board of Appeal

Petition for review proceedings consist of two stages. In the first stage, a panel of the Enlarged Board composed of three members (two legally qualified, one technically qualified) examines all petitions for review and rejects those which are clearly inadmissible or clearly unallowable (unanimity is required; R.109(2)(a)EPC). Those not rejected are considered by a panel composed of five members (four legally qualified, one technically qualified; R.109(2)(b)EPC). In these cases, the three-member panel under R.109(2)(a)EPC is supplemented by two further legally qualified members (Art.2(3)RPEBA). The chairman of the board against whose decision the petition was filed may not take part in the proceedings (Art.2(6)RPEBA).

3.10.2 Involvement of parties other than the petitioner in petition for review proceedings

Parties other than the petitioner are not to be involved in the first stage of petition for review proceedings (R.109(3)EPC; R.7/14). In R.5/08 the Enlarged Board held that non-petitioner parties, as long as they are not involved, have no right to be heard that could be violated. Although not summoned to oral proceedings in the first stage, non-petitioner parties may, however, attend such proceedings which are public.

3.10.3 Group parties

In R.18/09 the Enlarged Board held that the principles set out in G.3/99 (OJ 2002, 347), also applied to petition for review proceedings, namely that a plurality of persons acting in common must be treated as a single party (a "group party") and that such a group party must act through a common representative.

3.10.4 Procedural efficiency

Petition for review proceedings should by their nature be dealt with as speedily as possible, acceleration requests are therefore unnecessary (R 18/09, R 15/13). In R 11/12 the board also stated that petitions for review should, in the interest of legal certainty, be dealt with expeditiously, and did not consider a planned birthday party a reason justifying the fixing of a new date for oral proceedings before the Enlarged Board.

In R 5/08 the Enlarged Board noted that R 109(1) EPC provides that certain specific procedural time limits do not apply to petition for review proceedings and stated that this allowed the Enlarged Board to shorten these time periods in the interest of procedural efficiency. However, it clearly provides no justification for parties to disregard time limits set by the Enlarged Board itself.

3.11. Factual bases for the review – minutes and grounds for the decision

The factual bases for a review procedure under Art. 112a EPC are the minutes of the oral proceedings and the grounds for the decision under review (R 15/09, R 6/14). However, in R 3/10 the Enlarged Board also took signed declarations of persons who had attended the oral proceedings into account.

In R 4/16 the Enlarged Board stated that, according to its settled case law on petitions for review, the boards were not obliged to explicitly state the reasons underlying a decision until they issued the final decision in writing (see R 8/13 of 15 September 2015). R 124(1) EPC required only that the minutes of oral proceedings contain the essentials, so they did not have to record every single point addressed at those proceedings. It therefore could not be inferred from a point's omission from the minutes that it had not been considered.

3.12. Burden of proof

The petitioner bears the burden of proving its allegations (R 4/09). However, in R 15/11 the petition was allowed and the Enlarged Board stated that it is not for the party which alleges a breach of its right under Art. 113(1) EPC to prove that it has not been heard (*negativa non sunt probanda*). It would rather be the task of the boards to draft their own texts in a way that enables the reader, taking into account all documents on file, to conclude that the right to be heard was respected with regard to the grounds on which the decision is based.

In R 4/17 the Enlarged Board considered, in respect of the implausibility of the non-arrival of letters put forward by the other party, that it could not be expected that the petitioner should prove a negative, that is the non-receipt of a letter, or provide a plausible explanation for non-receipt (*negativa non sunt probanda*).

In R 8/18 the petitioner pointed to decision R 15/11 and the principle of "*negativa non sunt probanda*", arguing that it was not for the party to prove that it had not been heard. The Enlarged Board distinguished the case in hand from R 15/11. The petitioner in R 15/11

could point to the absence of facts which led to a legal conclusion, namely, the finding that the party had not been heard. In the case in hand the petitioner based its claims on positive facts, namely, the events that were stated to have occurred. Under these circumstances, the Enlarged Board found that the petitioner clearly carried the burden of proof that these events indeed occurred as stated.

3.13. Effects of a successful petition for review

3.13.1 Decision of board of appeal set aside

If the petition is allowable, the Enlarged Board sets aside the decision of the board of appeal and orders the re-opening of the proceedings before the board (R. 108(3) EPC). The limitation of the petition for review to a particular part of the decision (e.g. the non-reimbursement of the appeal fee) is admissible.

In R. 19/12 of 12 April 2016, the Enlarged Board held that although Art. 112a(5) and R. 108(3) EPC did not explicitly provide for setting a decision aside only partially, this possibility followed from general procedural principles (see also R. 16/14).

In T. 379/10 of 21 September 2015 the board cited R. 21/11, in which it was held that the re-opening of appeal proceedings did not mean that the parties had to be given another opportunity to comment on all the matters in dispute. Rather, proceedings re-opened after a successful petition for review had to be restricted to rectifying the defect found in the review decision.

3.13.2 Replacement of board members

The replacement of board members under R. 108(3) EPC after a petition for review has been held allowable lies in the discretion of the Enlarged Board, to be exercised fairly and proportionately in the light of the facts (R. 21/11).

In R. 15/11 the Enlarged Board held that unless there was a compelling reason for proceeding otherwise, the Business Distribution Scheme must be adhered to and applied to a case re-opened before the board.

In R. 16/13, the Enlarged Board rejected the request that members be replaced because it was not substantiated. In R. 21/11, the Enlarged Board also rejected the petitioner's request that members be replaced, stating inter alia that such a replacement would necessitate the repetition of the whole appeal proceedings, which would be disproportionate. However, after the decision in R. 21/11 had been taken, the chairman of the technical board concerned retired, and the appeal proceedings had, in any event, to be repeated. As a consequence, both the technically and the legally qualified member recused themselves under Art. 24(2) EPC (T. 584/09 of 1 March 2013).

3.13.3 Reimbursement of the fee for petitions for review

In R 21/11 the Enlarged Board stated that the only condition for the fee for a petition for review to be reimbursed under R 110 EPC is that the proceedings before the board of appeal are re-opened (a reimbursement request is not required).

4. Grounds for petition for review

4.1. Article 112a(2)(a) EPC – alleged breach of Article 24 EPC

For general information on Art. 24 EPC, see chapter III.J. "Suspected Partiality". The present chapter deals with decisions of the Enlarged Board under Art. 112a(2)(a) EPC.

In R 16/10 the Enlarged Board rejected the petitioner's argument that Art. 24(1) EPC, concerning the exclusion of members from a board, included not only the specific situation where one of the members had represented a party in the case in question but also the general situation where a member had previously acted as representative of that party in any matter. In R 20/09 the Enlarged Board confirmed that, in cases of suspected partiality of a board member, Art. 112a(2)(a) EPC requires that a decision has been taken on the suspected impartiality (Art. 24(4) EPC).

In R 3/16 the Enlarged Board confirmed that Art. 112a(2)(a) EPC foresees the situation where a member of the board has taken part in the decision despite being excluded pursuant to a decision under Art. 24(4) EPC or in breach of Art. 24(1) EPC. The petitioner had further contended that it was an established principle that a party had no obligation to appear before an unlawful court; that, on the contrary, it could be prejudicial to do so since the right to be heard could not be properly guaranteed before such a court, thus leading to the question as to whether appeal proceedings held by a board unlawfully composed may amount per se to a breach of the right to be heard. This question, however, remained open because the Enlarged Board did not come to the conclusion that the board had actually ignored the procedure of Art. 24(4) EPC.

In R 17/09 the Enlarged Board found that in English the term "man in the street" had no pejorative associations, but was commonly used to describe an average citizen.

4.2. Article 112a(2)(b) EPC – person not appointed as a board member

The Enlarged Board has not yet ruled on a petition for review alleging that a board of appeal included a person not appointed as a board member.

According to Art. 19(1), second sentence, RPBA 2020, only members of the board shall participate in the deliberations; the Chairman may, however, authorise other officers to attend. In T 857/06 the board held that, under this provision (then Art. 19(1) RPBA 2003), a board's assistant may attend and take part in the deliberations.